

PUBLIC VERSION

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before the Honorable Doris Johnson Hines
Administrative Law Judge**

In the Matter of

CERTAIN WEARABLE DEVICES

Inv. No. 337-TA-1478

**COMPLAINANTS' MOTION IN *LIMINE* NO. 2 TO EXCLUDE AND STRIKE
UNTIMELY NONINFRINGEMENT ARGUMENTS AND EVIDENCE REGARDING
THE '675 AND '677 PATENTS**

Complainants Samsung Electronics Co., Ltd. and Samsung Electronics America, Inc. (collectively, “Samsung”) respectfully move in *limine* to exclude Ouraring Inc. and Oura Health Oy’s (collectively, “Oura” or “Respondents”) untimely noninfringement arguments and evidence regarding Oura’s Ring 4 that are not found in Oura’s contentions and rebuttal expert report. Samsung also respectfully requests that the ALJ strike the portions of Oura’s prehearing brief disclosing the same untimely arguments and related evidence.

GROUND RULE 5.1 CERTIFICATION

Pursuant to Ground Rule 5.1, counsel for Complainants certify that they made reasonable, good-faith efforts to resolve this matter with Respondents before filing this motion. Samsung sent its motion *in limine* topics to Oura on August 20, 2026, and met and conferred on those topics on August 24, 2026. Oura opposes this motion.



I. INTRODUCTION

Samsung seeks to exclude and strike Oura's untimely noninfringement arguments with respect to the '675 and '677 Patents. Oura's untimely noninfringement arguments and related evidence should be excluded and stricken because they were disclosed for the first time in Oura's opposition to Samsung's motion for summary determination (Motion No. 1478-009). These theories were absent from Oura's contentions and Dr. Mortazavi's rebuttal expert report.

II. LEGAL STANDARDS

Courts routinely grant in *limine* motions when a party seeks to present evidence and arguments outside the scope of its contention interrogatory responses. *See, e.g., Certain Smart Wearable Devices, Sys., & Components*, Inv. No. 337-TA-1468, Order No. 23, at 5-7 (July 6, 2026) (EDIS Doc. ID 887092) (granting Samsung's motion in *limine* seeking to preclude certain opinions first disclosed in expert's opening expert report because complainant had not disclosed them in its contentions); *Certain Replacement Auto. Lamps II*, Inv. No. 337-TA-1292, Order No. 27, 2022 WL 3548440, at *1 (Aug. 16, 2022) (granting motion in *limine* to preclude new opinions because the underlying theories were not disclosed in response to contentions).

Moreover, "[a] party cannot rely on contentions in its pre-hearing brief that have not been timely disclosed during discovery." *See, e.g., Certain Audio Processing Hardware, Software, & Prods. Containing the Same*, Inv. No. 337-TA-1026, Order No. 58, 2017 WL 4216995, at *3-4 (Aug. 15, 2017) (striking portions of prehearing brief); *Certain Table Saws Incorporating Active Injury Mitigation Tech. & Components Thereof*, Inv. No. 337-TA-965, Order No. 16, at 2 (May 16, 2016) (EDIS Doc. ID 581248) (striking undisclosed defenses from the prehearing brief).

[REDACTED]

III. OURA’S UNTIMELY ’675 AND ’677 PATENT NONINFRINGEMENT THEORIES AND EVIDENCE SHOULD BE EXCLUDED

Samsung seeks to exclude new ’675 and ’677 Patent noninfringement theories and evidence, not disclosed in either Oura’s noninfringement contentions or Dr. Mortazavi’s Rebuttal Report, but instead presented for the first time in Oura’s Opposition to Samsung’s Motion for Summary Determination (Ex. A at 6-8), and further expanded in Oura’s Prehearing Brief (Ex. B at 20, 54-55).

A. Samsung’s Infringement Theory And Oura’s Original Position On Infringement

The asserted independent claims of the ’675 Patent (Claim 13) and ’677 Patent (Claims 1 and 9) each generally require activating/deactivating a biological sensor based on movement. Samsung accuses the operation of the Ring 4’s SpO2 sensor of infringing these claims because the

[REDACTED]

[REDACTED]

Specifically, relevant to the present motion, each independent claim requires deactivating a biological sensor, refraining from emitting light (of the sensor), or refraining from obtaining biological information, when motion is detected:

[’675, 13.f]: “in response to identifying that the *motion* of the electronic device included in the second information is more than a threshold motion, *inactivating the at least one second [biological] sensor*”;

[’677, 1.g]: “*refrain from the emitting of the light*, based at least in part on a determination that the second *motion signal* does not satisfy the specified condition”;

[’677, 9.f]: “*refrain from the obtaining of the second information [corresponding to biological signal]* using the activated second sensor based at least in part on a determination that *the first information [corresponding to movement]* satisfies a specified range”;

[REDACTED]

Samsung contends that these limitations are met because [REDACTED]

[REDACTED]

[REDACTED]. Ex. C (Samsung's Prehearing Brief, excerpted) at 21-22, 67-68, 71.

In its noninfringement contentions, Oura did not offer any substantive noninfringement arguments for the '675 or '677 Patent. For both patents, Oura relied on failure-of-proof type arguments for all limitations, contending that "Samsung has not identified with specificity how" the various limitations are met. Ex. D (Oura's noninfringement contentions, excerpted) at 106, 115, 132-33. Similarly, in the Mortazavi Rebuttal Report, Oura did not offer any substantive noninfringement opinions for the '675 and '677 Patents. Rather, Oura made only a general failure-of-proof allegation (Ex. E, ¶¶ 193, 301, 455), and then submitted an extensive comparison of the accused Ring 4 to the alleged prior art Ring 1 (*id.*, ¶¶ 194-204, 302-12, 456-64), including new and improper invalidity opinions based on that comparison.

B. Oura's New Noninfringement Theories

Because Oura had not offered any affirmative noninfringement arguments for the '675 and '677 Patents in either its contentions or its expert report, Samsung moved for summary determination that both patents are infringed. *See* Motion No. 1478-009. In its opposition to Samsung's motion, Oura argued for the first time that limitation [13.f] of the '675 Patent and limitation [1.g] of the '677 Patent were not met because the Oura Ring 4 [REDACTED]

[REDACTED] Ex. A (Opp. to Samsung's MSD, excerpted) at 6-8. According to Oura's new argument, the "second sensor" (limitation [13.f]) or "one or more optical sensors" (limitation [1.g]) must be defined as "the Ring's PPG sensor" [REDACTED] identified in Samsung's contentions and discussed in Samsung's expert report. Relying on this recharacterization of Samsung's infringement theory,

[REDACTED]

Oura goes on to assert that the Ring 4's [REDACTED]

[REDACTED] *Id.* Oura's Prehearing Brief repeats this argument for "the [REDACTED] of the Oura Gen 4 ring" and adds, for the first time, that limitation [9.f] is also not met. Ex. B (Oura's Prehearing Brief, excerpted) at 20, 54-55. Oura makes this latest untimely assertion notwithstanding the fact that limitation [9.f] is directed to refraining from obtaining biological information, not inactivating a sensor, and Oura concedes the Ring 4 "[REDACTED]." *Id.*

C. An Opposition To A Motion For Summary Determination And A Prehearing Brief Are Inappropriate Vehicles For New Noninfringement Theories And Evidence

"It is standard practice during evidentiary hearings to limit a party to the evidence and theories they have disclosed with specificity to the other parties in support of their cases." *Certain Video-Capable Laptop, Desktop Computs., Handheld Computs., Tablets, Televisions, Projectors, & Components & Modules Thereof*, Inv. No. 337-TA-1448, Order No. 37, at 6 (Mar. 3, 2026) (EDIS Doc. ID 875985). In order for Oura to raise these noninfringement theories, it was required to disclose them as part of its noninfringement contentions, thereby giving Samsung notice and an opportunity to address them. This failure alone compels that Oura's new theories be excluded. *Certain Smart Wearable Devices*, Inv. No. 337-TA-1468, Order No. 23, at 5-7 (July 6, 2026) (EDIS Doc. ID 887092) (excluding new bond theories not disclosed in contentions).

Yet Oura's failure extends further, as its noninfringement theories are also wholly absent from Oura's expert reports. Arguments raised for the first time in response to a summary determination motion or prehearing brief are rightly excluded and stricken. *Certain Silicon-on-Insulator Wafers*, Inv. No. 337-TA-966, Order No. 15 (May 9, 2026) (EDIS Doc. ID 594088) (striking evidence and contentions raised for the first time in response to a summary determination

[REDACTED]

motion); *Certain Audio Processing Hardware*, No. 337-TA-1026, Order No. 58, 2017 WL 4216995, at *3-4 (“A party cannot rely on contentions in its pre-hearing brief that have not been timely disclosed during discovery.”).

IV. CONCLUSION

For the foregoing reasons, Samsung requests exclusion of any testimony, opinions, or evidence regarding Oura’s late-disclosed ’675 and ’677 noninfringement theories, including noninfringement theories disclosed for the first time in Oura’s Opposition to Samsung’s Motion for Summary Determination and its Prehearing Brief. Samsung also respectfully requests that the ALJ strike the portions of Oura’s prehearing brief disclosing the same untimely arguments and related evidence.

Dated: August 24, 2026

Respectfully submitted,

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EXHIBIT A

REDACTED

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before the Honorable Doris Johnson Hines
Administrative Law Judge**

In the Matter of:

CERTAIN WEARABLE DEVICES

Investigation No. 337-TA-1478

**RESPONDENTS OURARING INC. AND OURA HEALTH OY'S OPPOSITION
TO COMPLAINANTS' MOTION FOR SUMMARY DETERMINATION
REGARDING INFRINGEMENT & DOMESTIC INDUSTRY TECHNICAL
PRONG FOR U.S. PATENT NOS 10,945,677 AND 10,231,675
(Motion No. 1478-009)**

Rep.) at ¶¶ 396-402, 474-77, 506-08, 576-79, 645-47; Motion at 9, 13-15, 17-18, 21; Samsung SUMF Nos. 10, 20, 27, 36, 48.

But as explained herein, the evidence of record shows that the optical sensor of the Oura Gen. 4 ring clearly does not “refrain from the emitting of the light” or “inactivate” any sensor by [REDACTED] (limitations [1.g] of the ’677 Patent and [13.f] and [20.j] of the ’675 Patent), and Dr. Welch’s opinions with regard to all of the contested limitations of the ’677 Patent as well as additional limitations [13.c] and [20.g] of the ’675 Patent are contradicted by his opinions with regard to validity, thus rendering his opinions unreliable and unable to sustain Samsung’s burden of proof. Cross-examination should be permitted to examine these inconsistencies and the contrary evidence.

A. [REDACTED] *does not “refrain from the emitting of the light” or “inactivate” any sensor (limitations [1.g] of the ’677 Patent and [13.f] and [20.j] of the ’675 Patent)*

First, as Dr. Welch himself will acknowledge (as he must), optical measurements by the Oura Gen. 4 ring—whether heart rate measurements or SpO₂ measurements—are undertaken by the ring’s PPG sensor. *See, e.g.*, Ex. 1 (Welch Inf. Rep.) at ¶ 434 (“[REDACTED]

[REDACTED]

[REDACTED]”). As Dr. Welch notes, [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Id. at ¶¶ 76-77. And while Dr. Welch occasionally refers to a “SpO₂ sensor,” it is clear that he means the SpO₂ measurements of the PPG sensor, and that these sensors are one and the same: “The Oura Ring 4 includes an optical photoplethysmography (PPG) sensor that operates as a heart rate monitor and a blood oxygen (SpO₂) sensor.” *Id.* at ¶ 76.

That there is only one optical sensor for optical measurements in the Oura Gen. 4 ring (*i.e.*, the PPG sensor) is key, because the clear (indeed, undisputed) evidence shows that [REDACTED]

[REDACTED]

[REDACTED] *See, e.g.*,

Ex. 3 (Mortazavi Reb. Rep.) at ¶ 147 ([REDACTED])

[REDACTED]

Dr. Welch does not address this deficiency [REDACTED]

[REDACTED]

See, e.g., Ex. 1 (Welch Inf. Rep.) at ¶ 400 (“

”).⁵ But limitation [1.g] of the ’677 Patent requires that the sensor “refrain from the emitting of the light,” rather than merely reduce its light emissions, and limitations [13.f] and [20.j] of the ’675 Patent require that the sensor be inactivated, not merely be reduced in functionality. The fact that the Oura Gen. 4 ring’s optical sensor continues to emit light and be active in order to measure heart rate means that these limitations are not met.

Thus, Dr. Welch’s assertions regarding [REDACTED] of Oura Gen. 4 ring does not satisfy Samsung’s burden of proof with respect to at least claims 1-4 (the asserted claims depending on independent claim 1) of the ’677 Patent or any asserted claim of the ’675 Patent.

B. There are irreconcilable contradictions in Dr. Welch’s opinions regarding limitations [1.g], [9.f], and [16.e] of the ’677 Patent

Additionally, Dr. Welch opines that the functionality of the Oura Gen. 1 ring does not meet the “refraining” limitations of the ’677 Patent. See, e.g., Ex. 2 (Welch Reb. Rep.) at ¶¶ 302-08.⁶ But in so doing, he contradicts himself and therefore creates a further factual dispute regarding infringement by the Oura Gen. 4 ring that prevents summary determination.

[REDACTED] Indeed, the relevant common transitions (*i.e.*, those implemented by both Gen. 1 and 4 rings and forming the basis of Samsung’s infringement theory) are illustrated as follows:

⁵ Dr. Welch is notably silent regarding the green LEDs, which he admits are a part of the sensor. See Ex. 1 (Welch Inf. Rep.) at ¶¶ 76-77 ([REDACTED]).

⁶ Dr. Welch does not argue that the Gen. 1 ring fails to disclose the “inactivate” limitations of the ’675 Patent.

Certain Wearable Devices

Inv. No.: 337-TA-1478

CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing **PUBLIC VERSION OF RESPONDENTS OURARING INC. AND OURA HEALTH OY'S OPPOSITION TO COMPLAINANTS' MOTION FOR SUMMARY DETERMINATION REGARDING INFRINGEMENT & DOMESTIC INDUSTRY TECHNICAL PRONG FOR U.S. PATENT NOS 10,945,677 AND 10,231,675 (MOTION NO. 1478-009)** was served upon the following as indicated below on August 5, 2026:

The Honorable Lisa R. Barton Secretary to the Commission U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W. Washington, DC 20436	Via EDIS
The Honorable Doris Johnson Hines Administrative Law Judge U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W., Room 317 Washington, DC 20436	Via email and Box: JohnsonHines1478@usitc.gov
Counsel for Complainants Samsung Electronics Co., Ltd and Samsung Electronics America, Inc. D. Sean Trainor O'MELVENY & MYERS LLP 1625 Eye Street, NW Washington, D.C. 20006-4061 Telephone: (202) 383-5300	Via email: OMM-SamsungOura@OMM.com

/s/ Jasjit S. Vidwan
Jasjit S. Vidwan

*Counsel for Respondents Ouraring Inc.
and Oura Health Oy*

EXHIBIT B

REDACTED

PUBLIC VERSION

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before the Honorable Doris Johnson Hines
Administrative Law Judge**

In the Matter of

CERTAIN WEARABLE DEVICES

Inv. No. 337-TA-1478

RESPONDENTS' PRE-HEARING BRIEF

IV. '675 PATENT

A. Oura's Products Do Not Infringe the Asserted Claims

As set forth in Oura's opposition to Samsung's motion for summary determination (EDIS Doc. ID 889195), Oura contends that Samsung will not be able to carry its burden to show infringement of the '675 Patent by any product at issue (Oura's Gen. 4, Ring 5, and [REDACTED] rings).

1. Oura's Gen. 4 Ring Does Not Infringe the Asserted Claims

First, Samsung will not be able to show that the Oura Gen. 4 ring “inactivat[es] the at least one second sensor” in response “identifying that the motion of the electronic device included in the second information is more than a threshold motion,” as required by claim element [13.f]. As Dr. Welch must admit upon cross-examination, the state transition alleged by Samsung to meet this limitation (from the [REDACTED]) at most [REDACTED] [REDACTED] of the Oura Gen. 4 ring—thereby potentially [REDACTED] [REDACTED]—but the [REDACTED]. Thus, as a result of this state transition, the optical sensor does not “inactivat[e] the at least one second sensor.”

Second, Samsung's expert, Dr. Welch, cannot provide credible opinions sufficient to sustain Samsung's burden of proof because he has contradictory opinions with regard to invalidity in view of Oura's Gen. 1 ring, which has substantially similar state transitions as are accused. Specifically, Dr. Welch opines that the Oura's Gen. 1 ring's transition from the [REDACTED] state (or potentially [REDACTED] state) does not meet the requirements of claim limitation [13.c], whereas the Gen. 4 ring's transition from the [REDACTED] state (or potentially [REDACTED] state) does—a contradictory opinion, given that, as Dr. Mortazavi and Mr. Larson will testify, the [REDACTED]. JDX-0007C ¶¶154, 191. Dr. Welch's invalidity opinions undermine his infringement opinions, and he will not be able to help Samsung carry its burden of proof.

watch would be an example of a commercially available wearable device with a motion sensor, a biological sensor, and a controller”). The Basis B1 Band includes “an internal accelerometer that allows it to measure steps’ along with ‘the optical and skin temperature sensors’ wherein the optical sensor performs PPG measurements by ‘measuring the reflection of light emitted by the green sensor’ which discerns the heart rate.” JDX-0001C ¶1284 (quoting RX-0009.0013, 0017 (July 25, 2013 review of the Basis B1 Band)).

Both Hong and Utter II (discussed in relation to invalidity Grounds 2-5) are further evidence that the field of art would have found the claimed determinations to be performed by the device were well-understood, routine, and conventional, even in combination, as of the claimed priority date of the ’675 Patent. Mr. Christophy and Mr. Larson’s expected testimony regarding the Oura Gen. 1 ring will be further evidence of what was well-understood, routine, and conventional with regard to the claimed determinations of sensor activity based on other sensor activity.

Samsung has made no allegations of any particular inventive concept, and accordingly, the claims of the ’675 Patent fail at both *Alice* steps one and two, and are therefore patent ineligible under 35 U.S.C. § 101.

V. ’677 PATENT

A. Oura’s Products Do Not Infringe the Asserted Claims

As set forth in Oura’s opposition to Samsung’s motion for summary determination (EDIS Doc. ID 889195), Oura contends that Samsung will not be able to carry its burden to show infringement of the ’677 Patent by any product at issue (Oura’s Gen. 4, Ring 5, and [REDACTED] rings).

1. Oura’s Gen. 4 Ring Does Not Infringe the Asserted Claims

First, Samsung will not be able to show that the Oura Gen. 4 ring “refrain from the emitting of the light, based at least in part on a determination that the second motion signal does not satisfy

the specified condition,” as required by claim element [1.g], or “refrain from the obtaining of the second information using the activated second sensor based at least in part on a determination that the first information satisfies a specified range,” as required by claim element [9.f]. As Dr. Welch must admit upon cross-examination, the state transition alleged by Samsung to meet these limitations [REDACTED] [REDACTED]

[REDACTED]. Thus, as a result of this state transition, the optical sensor does *not* “inactivat[e] the at least one second sensor.”

Second, Samsung’s expert, Dr. Welch, cannot provide credible opinions sufficient to sustain Samsung’s burden of proof because he has contradictory opinions with regard to invalidity in view of Oura’s Gen. 1 ring, which has substantially similar state transitions as are accused. Specifically, Dr. Welch opines that the Oura’s Gen. 1 ring’s transition [REDACTED] (or potentially [REDACTED] state) does *not* meet the requirements of claim limitations [1.g] and [9.f], whereas the Gen. 4 ring’s transition from the [REDACTED] state (or potentially [REDACTED] state) does—a contradictory opinion, given that, as Dr. Mortazavi and Mr. Larson will testify, the code is [REDACTED]. JDX-0007C ¶¶147, 151, 195, 202. Dr. Welch’s invalidity opinions undermine his infringement opinions, and he will not be able to help Samsung carry its burden of proof.

2. *Ring 5 and [REDACTED] Do Not Infringe the Asserted Claims*

Samsung has put forth no contention or evidence of infringement by these rings and accordingly cannot carry its burden of proof. *See Certain Crafting Machines*, Inv. No. 337-TA-1426, ID at 40. Dr. Mortazavi and Mr. Larson will testify that although Ring 5 and [REDACTED] have broadly similar functionality to Oura’s Gen. 4 ring, the software and hardware functionality is not

CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing **RESPONDENTS' PRE-HEARING BRIEF** was served upon the following as indicated below on August 10, 2026:

The Honorable Lisa R. Barton Secretary to the Commission U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W. Washington, DC 20436	Via EDIS
The Honorable Doris Johnson Hines Administrative Law Judge U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W., Room 317 Washington, DC 20436	Via email and Box: JohnsonHines1478@usitc.gov
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/s/ Jasjit S. Vidwan

Jasjit S. Vidwan

*Counsel for Respondents Ouraring Inc.
and Oura Health Oy*

EXHIBIT C

REDACTED

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before the Honorable Doris Johnson Hines
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In the Matter of

CERTAIN WEARABLE DEVICES

Inv. No. 337-TA-1478

COMPLAINANTS' PRE-HEARING BRIEF

[REDACTED]

the activated second sensor. *See* JDX-0004C, ¶¶72-111, 565-572; CX-0241, SAMS382-0027803; CX-0221, SAMS382-0027593; JDX-0025C, 66:15-68:22; JDX-0026C, 78:24-79:5, 233:23-234:15, 234:18-237:10; JX-0003, 1:29-35; CX-1500C, OURA_1478_SC_0000080-81, 185-89, 192, 331, 351-53, 448-50, 457-58, 460-61, 464; CX-1686C, OURA_1468_SC_0000178. Once the SpO2 sensor is activated, the Accused Products use it to detect the user’s biological information, specifically SpO2. JDX-0004C, ¶¶72-111, 565-572.

f. Limitation 13.e (“during detecting the biometric information, acquiring second information on a motion of the electronic device using at least the part of the at least one first sensor;”)

While detecting the biometric information [REDACTED] the Accused Products acquire second information on [REDACTED] using at least a part of the first sensor. *See* JDX-0004C, ¶¶72-111, 573-575. In the same manner as described in limitation 13.c, the Accused Products [REDACTED]
[REDACTED], which is “biometric information.” *See* Section IV.A.1.d.

g. Limitation 13.f (“and in response to identifying that the motion of the electronic device included in the second information is more than a threshold motion, inactivating the at least one second sensor.”)

In response to identifying that [REDACTED]
[REDACTED], the Accused Products [REDACTED] the second sensor (i.e., SpO2 sensor). *See* JDX-0004C, ¶¶72-111, 576-579; CX-0241, SAMS382-0027803; CX-0221; JDX-0026C, 233:23-234:15, 234:18-237:10; CX-1500C, OURA_1478_SC_0000080-81, 185-89, 192, 448-50, 457-58, 460-61, 464; CX-1686C, OURA_1468_SC_0000178. As Samsung’s expert Dr. Welch confirmed based on his review of the firmware code, the Accused Products [REDACTED]
[REDACTED]

[REDACTED]
[REDACTED]
[REDACTED] JDX-0004C, ¶¶72-111, 576-579; CX-1500C,
OURA_1478_SC_0000080-81, 185-89, 192, 448-50, 457-58, 460-61, 464; CX-1686C,
OURA_1468_SC_0000178. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED] *Id.*

For the first time in opposing Samsung’s MSD, Oura argues this claim element is not met because “the ring’s PPG sensor” [REDACTED].
EDIS ID 889195, 4-8. Oura’s eleventh-hour attorney argument is wrong. [REDACTED]
[REDACTED]
[REDACTED]

[REDACTED] See Section

IV.A.1.d. Oura’s insistence that an unaccused sensor (whether it defines as the HR sensor or PPG sensor) may be active does not change this fact. [REDACTED]
[REDACTED]

[REDACTED] JDX-0004C, ¶¶434-438; JDX-0026,
220:25-221:6 (Oura firmware engineer Michael Larson confirming based on Oura documentation
that [REDACTED]
[REDACTED]); CX-1219C, 93:23-95:10 (Oura engineer Ketan Patel confirming that the [REDACTED]
[REDACTED]);
CX-0241, SAMS382-0027803 (disclosing [REDACTED]
[REDACTED]).

[REDACTED]

[REDACTED] CX-0994C, OURA1468_00029610; CX-0241, SAMS382-0027803; *see also id.* Because the [REDACTED] is [REDACTED], it obtains a “second motion signal” “during the obtaining of the biological signal.” *Id.*

i. Limitation 1.h (“refrain from the emitting of the light, based at least in part on a determination that the second motion signal does not satisfy the specified condition.”)

The Accused Products “refrain from the emitting of the light, based at least in part on a determination that the second motion signal does not satisfy the specified condition.” JDX-0004C, ¶¶72-77, 88-111, 396-402, 474-77; CX-0241, SAMS382-0027803; CX-0221; JDX-0026C, 233:23-234:15, 234:18-237:10; CX-1500C, OURA_1478_SC_0000080-81, 185-89, 192, 448-50, 457-58, 460-61, 464; CX-1686C, OURA_1468_SC_0000178. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] See Section V.A.1.i. [REDACTED]

[REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED]

[REDACTED] JDX-0004C, ¶¶72-77, 88-111, 396-402, 474-77; CX-1500C, OURA_1478_SC_0000080-81, 185-89, 192, 448-50, 457-58, 460-61, 464; CX-1686C, OURA_1468_SC_0000178. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

For the first time in opposing Samsung’s MSD, Oura argues that this claim element is not met because [REDACTED]

[REDACTED] EDIS ID 889195, 4-8. Oura’s eleventh-hour argument is wrong for at least three

[REDACTED]

reasons. *First*, it is the SpO2 sensor, not the PPG sensor, that Samsung and Dr. Welch identifies as the claimed “one or more optical sensors.” And, as s shown above, the SpO2 sensor satisfies the claim limitation because the [REDACTED]. *See* Section V.A.1.c. Oura’s insistence that an unaccused sensor (whether it defines as the HR sensor or PPG sensor) may be active does not change this fact. *Second*, [REDACTED] JDX-0004C, ¶¶434-438; JDX-0026, 220:25-221:6 (Oura firmware engineer Michael Larson confirming based on Oura documentation that [REDACTED] [REDACTED]); CX-1219C, 93:23-95:10 [REDACTED]; CX-0241, SAMS382-0027803 (disclosing “Red and infrared LEDs measure blood oxygen;” not the green LED). Thus, Oura’s assertion that the Accused Products continue to measure HR fails to rebut Samsung’s showing that the [REDACTED]. *Third*, 1.h requires “refrain[ing] from emitting of *the* light” where “the light” refers back to the specific light emitted “based at least in part on a determination that the first motion signal satisfies a specified condition” in 1.e. Even if the PPG sensor was accused and emits other light under other conditions (e.g., light used to measure daytime HR), the specific light emitted and accused for 1.e is the specific red and IR light for measuring SpO2, which is [REDACTED] *See* Section V.A.1.f. There is no dispute that this specific light is no longer emitted when “the second motion signal does not satisfy the specified condition.”

[REDACTED]

determining based at least in part on a determination that the first motion signal satisfies a specified condition” [REDACTED]

[REDACTED]

JDX-0004C, ¶¶72-111, 411-423; CX-1500C, OURA_1478_SC_0000185-187, 191, 197; CX-1686C, OURA_1468_SC_0000178, 363; JDX-0026C, 173:22-174:18; 178:17-24, 180:11-18, 185:5-18; 186:14-17; 188:6-189. Alternatively, a [REDACTED]

[REDACTED] *Id.*

3. The Accused Products Infringe Claim 9

a. Limitation 9.pre (“A wearable electronic device comprising:”)

9.pre is satisfied for the same reason as 1.pre. *See* Section V.A.1.a.

b. Limitation 9.a (“a first sensor;”)

The “motion sensor” described for 1.a is “a first sensor.” *See* Section V.A.1.b.

c. Limitation 9.b (“a second sensor; and”)

The “optical sensor” described for 1.b is “a second sensor.” *See* Section V.A.1.c.

d. Limitation 9.c (“at least one processor configured to:”)

9.c is satisfied for the same reason as 1.c. *See* Section V.A.1.d.

e. Limitation 9.d (“obtain, using the first sensor, first information corresponding to movement of the wearable electronic device,”)

9.d is satisfied for the same reason as 1.d and 1.g. *See* Section V.A.1.e, V.A.1.h. The “first information corresponding to movement” of 9.d is motion information detected using the accelerometer, which includes motion signals as described for 1.d and 1.g. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

f. Limitation 9.e (“activate the second sensor based at least in part of the movement,”)

The Accused Products “activate the second sensor based at least in part of the movement” resulting in emission of light as described for 1.e. *See* Section V.A.1.f.

g. Limitation 9.f (“obtain, using the activated second sensor, second information corresponding to biological signal related to a user during the obtaining of the first information, and”)

9.f is satisfied for the same reasons as 1.f. *See* Section V.A.1.g. The “biological signal” corresponding to the “second information” is obtained by emitting light using the “activated” SpO2 sensor (“second sensor”).

h. Limitation 9.g (“refrain from the obtaining of the second information using the activated second sensor based at least in part on a determination that the first information satisfies a specified range.”)

9.g is satisfied for the reasons described for 1.h. *See* Section V.A.1.i. For 9.g the “specified range” triggering the “refrain[ing]” is [REDACTED].

B. TDI Is Met for the '677 Patent

Samsung’s expert Dr. Welch and the evidence will demonstrate that WDI Products practice Claims 1-3 and 9 of the '677 Patent as detailed below. In fact, Oura has offered no rebuttal expert opinion or evidence regarding Claim 9.

1. TDI Is Met for Claim 1

a. Limitation 1.pre (“A wearable electronic device comprising;”)

The WDI Products are the claimed “wearable electronic device[s]” in the form of wearable electronic rings or watches. JDX-0004C, ¶¶112-32, 177, 823-26, 930-32.

b. Limitation 1.a (“a motion sensor;”)

The WDI Products each include the claimed “motion sensor” in the form of an accelerometer specific. JDX-0004C, ¶¶112-32, 827-30, 933-35; CX-0148C, SAMS382-0012471;

CERTIFICATE OF SERVICE

Investigation No. 337-TA-1478

The undersigned certifies that on August 10, 2026, true and correct copies of the foregoing document were served upon the following parties as indicated below:

The Honorable Lisa R. Barton Secretary to the Commission U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, SW, Room 112 Washington, DC 20436	☐ Via Hand Delivery ☐ Via Overnight Delivery ☐ Via First Class Mail ☒ Via Electronic Filing (EDIS) ☐ Via Electronic Mail
The Honorable Doris Johnson Hines Administrative Law Judge U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W. Washington, D.C. 20436 Email: JohnsonHines1478@usitc.gov	☐ Via Hand Delivery ☐ Via Overnight Delivery ☐ Via First Class Mail ☒ Via Electronic Filing (EDIS) ☒ Via Electronic Mail
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EXHIBIT D

REDACTED IN ITS ENTIRETY

EXHIBIT E

REDACTED IN ITS ENTIRETY

The undersigned certifies that on August 24, 2026, true and correct copies of the foregoing document were served upon the following parties as indicated below:

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CERTIFICATE OF SERVICE

Investigation No. 337-TA-1478

The undersigned certifies that on August 31, 2026, true and correct copies of the foregoing document were served upon the following parties as indicated below:

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